

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CIVIL REVISIONAL JURISDICTION)

Present:

Mr. Justice Md. Moinul Islam Chowdhury

Civil Revision No. 154 of 2008

Amir Ali Khalifa being dead his legal heirs :

1(a) Md. Humayun Kabir and others.

----- The pre-emptor-respondent-petitioners

=Versus=

Md. Siraj Uddin Khalifa and others

---The pre-emptee-appellant-opposite-parties.

Mr. Md. Shahidul Islam with

Mr. Md. Zahangir Kabir and

Mr. Mohammad Riaz Hossain, Advocates

----- For the petitioners

Mr. Bhabesh Chandra Ghosh, Advocate,

----- For the opposite-parties.

Heard on 09.02.2017, 14.02.2017 and

Judgment on 03.04.2017

At the instance of the present pre-emptor (applicant)-respondent-petitioner, Amir Ali Khalifa being dead his legal heirs Md. Humayun Kabir and others, this Rule has been issued calling upon the opposite-party Nos.1-3 to show cause as to why the impugned judgment and decree complained of in the petition moved in Court today should not be set aside.

The Rule is directed against the judgment and decree dated 20.09.2007 passed by the learned Joint District Judge, Court No.2, Jhalakati in Title Appeal No.56 of 2006 reversing the Judgment and decree

passed by the learned Assistant Judge, Rajapur, Jhalakati in Title Suit No.58 of 2003 decreeing the suit in favour of the pre-emptor-petitioner.

The relevant facts for disposal of the Rule, inter alia, are that the present petitioner as the pre-emptor-applicant filed the Title Suit No.58 of 2003 in the Court of the learned Assistant Judge, Rajapur, Jhalakati for a pre-emption right as per the Muslim Law upon the land measuring 20 decimals situated in S.A. Khatian Nos.433, 167, 220 and 489. The plaint further contains that one Nabab Ali was the original owner of the said land along with other land and he died leaving behind his heirs who are the present pre-emptor and the vendor defendant Nos.4 & 5. The said defendant Nos.4 & 5 sold 20 decimals of their inherited land to the pre-emptee defendant Nos.1-3 by the registered sale deed No.478 dated 06.03.2003. The present petitioner did not have any knowledge of the said sale deed, eventhough, the pre-emptor is one of the co-owners of the suit land and he would have purchased the property if he could known about the sale. Subsequently he came to know about the sale from Jaban Kazi and Yousuf Ali on 10.05.2003 for the first time. As soon as he came to know he demanded the land by shouting express intention to purchase the land and jumping in the land he claimed demanding to purchase the suit land. However, the present petitioner as the pre-emptor could not file a suit under the Muslim Law until he received a certified copy of the alleged deed while he obtained on 14.05.2006.

The present pre-emptee defendant Nos.1-3 contested the suit by filing a written statement controverting the allegations made in the application plaint of the suit. It is contended that the suit land is a joint property of both the pre-emptor plaintiff and the pre-emptee defendants and they were in possession of their respective lands. When the vendor the defendant Nos.4 & 5 needed some cash money sold the property which was within the knowledge of the present pre-emptor, because he and others approach to him for purchasing the land which he declined, therefore, the vendor pre-emptee sold the land to the pre-emptee defendant Nos.1-3 within the knowledge of all relevant parties.

After hearing the parties and considering the evidence, in particular, considering the relevant provisions in the Muslim Law, the learned Assistant Judge, Rajapur, Jhalakati decreed the suit by his judgment and decreed dated 30.07.2006. Being aggrieved the present pre-emptee defendants as the appellants preferred the Title Appeal No.56 of 2006 in the Court of the learned District Judge which was heard by the learned Joint District Judge, Court No.2, Jhalakati on transfer who by his judgment and decree allowed the appeal on 29.09.2007. This revisional application has been filed challenging the said judgment and the Rule was issued thereupon.

Mr. Md. Shahidul Islam, the learned Advocate, appearing with Mr. Md. Zahangir Kabir and Mr. Mohammad Riaz Hossain, the learned

Advocates for the present pre-emptor-petitioner, submits that the learned appellate Court below without considering the evidence, records and other papers submitted by the parties and the deposition of the witnesses of the respective parties and also misconstruing the Mohamedan Law on pre-emption allowed the appeal by the reversing judgment of the trial Court which is a miscarriage of justice and which caused error of law occasioning failure of justice, thus the Rule is to make absolute.

The learned Advocate further submits that it has been proved by the documentary and oral evidence that one of the owners of A.S. khatian Nos.433, 434, 210 and 489 of Pukhrijana Mouja was Mr. Ahmed who died leaving the plaintiff-Amir Ali and Md. Saedur Rahman. The vendors defendant Nos.4 and 5 are the heirs of Saedur Rahman and the pre-emptees are not the nearest co-sharers, so the Trial Court had rightly decreed the suit in favour of the pre-emptor, but the appellate Court, allowed the appeal on some fragile grounds that the pre-emptor was not examined and the P.W.2 could not prove the plaint case but he remained silent as to other witnesses and the documents submitted by the pre-emptor could prove the case or not and thus the judgment and decree of the appellate court miscarries the justice and the same should be set aside for ends of justice.

The learned Advocate also submits that under the Mohamedan Law a pre-emption right is not lost by an earlier refusal to purchase any land before sale of the same land and a right is not also lost by any previous

notice of sale, therefore, the right for purchasing any land is mostly by complying certain formalities which create a right of pre-emption under the Mohamedan Law, but the learned appellate Court failed to consider of such right, thus, interference is called for this Court.

The Rule has been opposed by the present pre-emptee-opposite-party Nos.1-3.

Mr. Bhabesh Chandra Ghosh, the learned Advocate appearing for the pre-emptee-opposite-parties submits that the learned trial Court committed an error of law by decreeing the suit even after considering that the plaintiff failed to prove any demand of land by complying formalities under the provisions of the Mohamedan Law for pre-emption, however, the learned appellate Court categorically mentioned about the failure to prove by adducing and producing sufficient evidence in the Court, as such, the Rule is liable to be discharged.

The learned Advocate also submits that under the Mohamedan Law, compliance of the formalities are important there the other laws, in particular, a right of pre-emption is taken away if the pre-emptor is approached by the vendor pre-emptee for selling the land but the learned trial Court misconstrued the provision under the Mohamedan Law as to the stages of Talab-I-Mowsibat and also Talab-I-Ishhad which the pre-emptor failed to prove, thus, the present Rule is liable to be discharged.

The learned Advocate submits both the pre-emptor-petitioner and pre-emptee-defendant-opposite-parties are co-owners of the suit land and also the pre-emptee purchasers are co-owners, therefore, no right of pre-emption acquired in favour of the present petitioner.

Considering the above, submissions made by the learned Advocates and considering the revisional application under section 115(1) of the Code of Civil Procedure along with the annexures therein, in particular, the impugned judgment and decree passed by the learned lower appellate Court and also considering the materials of the lower Court record, it appears that the present petitioners as the pre-emptor filed a suit claiming right of pre-emption under the Mohamedan Law upon the land measuring 20 decimals fully described in the plaint of the suit. At the initial stage of the hearing of this Rule, I raised a question as to filing a suit for right of pre-emption under the provision of Mohamedan Law which is a Sharia personal law not a statutory law. To answer the question both the learned Advocates appearing for the parties accepted that under the Muslim Law right of pre-emption has precisely narrated. In this regard, it is to be mentioned that a person can take an option or can choose any law as there are six ways of claiming pre-emption right in our country which are (a) section 96 of the State Acquisition and Tenancy Act, (b) Section 24 of the Non-Agricultural and Tenancy Act, (C) Mohamedan Law, (d) Partition Act among others. The learned Advocate for the petitioner, however could not give any

satisfactory answer as to why the petitioner has chosen this laws. However, the present petitioner has chosen Mohamedan Law for claiming the present pre-emption right and I do not find any illegality in such option.

Now the question is whether the pre-emptor applicant could successfully comply the required formalities for getting a pre-emption right under the Mohamedan Law. In order to answer the above question, I have carefully examined the documents filed by the respective parties and which have been exhibited, and I found that the vital issues under the Mohamedan Law are that it requires some steps before getting any pre-emption right. It appears to me that the parties are co-owners under the same jote and there is no dispute about that. The dispute arose when the pre-emptee defendant-opposite-party Nos.4 & 5 sold their land measuring 20 decimals to the pre-emptee purchasers who are the opposite-party Nos.1-3 by a registered sale deed No.478 dated 06.03.2003. The pre-emptor-petitioner claimed that he did not have any knowledge as to the above sale. On the other hand, the present pre-emptee vendor claimed that they have approached to the pre-emptor to purchase the land or to disclose their intention to sale the land. At that point of time the pre-emptor had declined to purchase the land.

In this regard, I have examined the deposition by the respective witnesses, but I am satisfied as to the claim of the pre-emptor. However, under the Mohamedan Law as per the book published by DLR (page 362) under the title of the “Principles of Mohamedan Law”, 1984 edition

contains that a right of pre-emption could not be lost by any refusal to purchase before the sale or a right of pre-emption would not be lost by any previous notice of sale. Therefore, under the Mohamedan Law a notice before sale would not take away the right of pre-emption. In the instant case the petitioner claimed the right of pre-emption as soon as he came to know about the sale deed dated 03.06.2003 executed by the present opposite-party Nos.4 & 5 in favour of the present opposite-party Nos.1,2 & 3. Therefore, the vital matter is to be decided here is that whether the pre-emptor has complied with the formalities required under the Mohamedan Law which is a Sharia Law and therefore, a personal law. The book published under the title, "The Principles Mohamedan Law, 1984" edition published by DLR described the formalities for demand of pre-emption in the following terms :-

DEMANDS FOR PRE-EMPTION-No person is entitled to the right of pre-emption unless-

- (1) he has declared his intention to assert the right *immediately* on receiving information of the sale. This formality is called *talab-i-mowasibat* (literally, demand of jumping, that is, in mediate demand); and unless
- (2) he has with the least practicable delay affirmed the intention, referring expressly to the fact that the

talab-i-mowasibat had already made (a) and has made a formal demand-

(a) either in the presence of the buyer, or the seller,
or on the premises which are the subject of sale
(b) and

(b) in the presence of at least two witnesses (c). This is called *talab-i-ishhad* (demand with invocation of witnesses).

From the above description of the Mohamedan Law it appears to me that first step for a pre-emptor is to declare his intention to assert right immediately on receiving information of the sale i.e. *talab-i-mowasibat* and also demanding his intention to purchase the land in presence of witnesses which is known as *talab-i-ishhad*. In the instant case the P.Ws.1 & 2 are important. P.W. 1 Nurmala Begum deposed that “শুনিবার পর পাগঞ্জার মত হয় এবং জমীন্সহ যায় and the P.W.2 জবান গাজী also deposed that লাফ দিয়া বুক চাপিয়া চিৎকার করি।”. The above deposition on behalf of the plaintiff-petitioner is sufficient to comply with the formalities under the Mohamedan Law and the suit was filed within 1(one) year from the date of obtaining a certified copy of the sale deed. I therefore, consider that the requirements of a pre-emption right under the Mohamedan Law are satisfied in the instant case.

The learned trial Court after considering the evidence and deposition for the respective parties concluded to decree the suit on the basis of the following findings :-

“ইং ১০/০৫/০৩ তারিখ ১-৩ নং বিবাদীর বাড়ী-ত আসিয়া জমি দাবী করি-ল তখন বাদী দৌড়ি-য় জমি-ত যে-য় ব-ল আমি সুফি আমি সুফি। বিবাদী পক্ষের বিজ্ঞ কৌশলীর জেরায় বিপরীত কোন বক্তব্য উদঘাটিত হয় নাই। পি, ডরিউ-৩ এবং পি,ডরিউ-৪ হিসাবে দেলফুককার ও মোফাজ্জেল খান বিবাদী মামলার জমি পে-ল বাদীর ক্ষতিপূরণ ম-র্ম সাক্ষ্য দেন। মুসলিম আইনানুসা-র হক সুফার দাবীর ক্ষেত্রে প্রথম দাবী বা তলব ই মুয়াসিবাত বা তাৎক্ষনিক দাবী বিএফ-য়ের সংবাদ পাওয়ার সা-থ সা-থ কাল বিলম্ব না করিয়া দাবী ঘোষণা করা দ্বিতীয় দাবী বা তলব ই ইশহাদ অর্থাৎ ক্রেতা বা বিএফতার উপস্থিতি-ত অথবা বিক্রিত সম্পত্তির উপরে কখন কোন পক্ষে দুইজন সাক্ষীর উপস্থিতি-ত দাবী করায় বিষয়টি বাদী সাক্ষ্যপ্রমাণ দ্বারা প্রমাণ করি-ত সক্ষম হইয়া-ছেন বলিয়া আদালত মনে করেন। তৃতীয় দাবী বা তলবই গুধুমাত এর আট এই যে, মোকদ্দমা দা-য়র করা বাদী হইয়া দাবীটি অত্র মোকদ্দমা দায়ের করিয়া-ছেন।”

However, the appellate Court below reversed of the judgment of the learned trial Court by allowing the appeal and setting aside the judgment of the trial Court on the basis of the following findings :-

“এমতাবস্থায় বাদী আরজী-ত নালি-শর কারণ হিসা-ব যে ঘটনার কথা উ-ল্লখ ক-র-ছ তা অপ্রমিত ও অসত্য ম-র্ম প্রতীয়মান হয়। মুসলীম আই-ন অগ্রএফ-য়ের অধিকার ব্যাঙ করার জন্য কম প-ক্ষ ২ জন সাক্ষীর উপস্থিতি-ত তলব-ই-ইসাদ পালনের বাধ্য বাধকতা রয়েছে। অত্র মোকদ্দমায় বাদীর দাবী প্রকাশ কা-ল জবানবন্দী-ত এবং ইউসুব আলী হাং উপস্থিত ছি-লন ম-র্ম আরজী-ত উ-ল্লখ হ-লও ইউসুব আলী হাং নিম্ন আদাল-ত সাক্ষ্য প্রদান ক-রননি। অপর সাক্ষী জবান আলী হাং উপস্থিত ছিল। পূ-র্বই বলা হ-য়-ছ যে, পি,ডল্লিউ-২ জবান গাজী বিবাদী-দর কাছ থে-ক বাদী তর্কিত হস্তান্ত-রর কথা জান-ত পা-রন ম-র্ম বল-লও তারিখ তর্কিত হস্তান্ত-রর কথা শু-ন জমি-ত

গি-য় লাফা লাফি ক-রন সুতরাং বাদী সে প্রকৃতই ২ জন সাক্ষীর উপস্থিতি-ত
তলবী-ই-ইসাদ পালন ক-র তা আ-দৌ প্রামাণিত হয়নি।”

After examining the findings of the learned trial Court below, I consider that as per the above discussions of the trial Court committed no error of law by decreeing the suit in favour of the present plaintiff-petitioner's right of pre-emption under the Mohamedan Law, but the learned appellate Court below failed to appreciate the requirements of the Mohamedan Law thereby came to an unlawful decision to allow the appeal by setting aside the judgment and decree of the trial Court.

In view of the above, I consider that the judgment of the learned trial Court is hereby upheld and the judgment and decree passed by the appellate Court is hereby set aside. I am therefore, inclined to interfere the judgment and decree passed by the learned appellate Court below.

Accordingly, I find merit in this Rule.

In the result, the Rule is made absolute.

The section is directed to communicate the judgment and decree to the court concerned at once.